

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
YANICK JEAN-BAPTISTE, as Administrator for
the Estate of SERGE DUTHELY, and
YANICK JEAN-BAPTISTE, Individually, and on behalf
of SYMPHONY LEE DUTHELY and KHLOE
LEON DUTHELY, Infants

Plaintiff(s)

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER WHITE and POLICE
OFFICERS, "JOHN DOE", 1 thru 5, individually, (the names
JOHN DOE, being factitious as the true names are presently
unknown

Defendants
-----X

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated, August 30, 2016

Defendant's address:

City of New York
100 Church Street
New York, New York 10007

Police Officer White
69th Precinct
9720 Foster Avenue
Brooklyn, New York 11236

New York City Police Department
1 Police Plaza
New York, New York 10007

SUMMONS

Index No:

Plaintiff designates Kings
County as the place of trial

The basis of venue is
Plaintiffs residence

Plaintiff resides at
1324 East 92nd Street
Brooklyn, New York
11236

Gregory S. Watts
Attorney for Plaintiff(s)
26 Court Street, Suite 910
Brooklyn, New York 11242
(718) 875-5020

"John Doe" #1-5
c/o New York City Police Department
1 Police Plaza
New York, New York 10007

Notice: The nature of this action is Personal Injury The relief sought is Money Damages

Upon your failure to appear, judgment will be taken against you by default for the sum of \$10,000,000.00 with interest from January 31, 2016, and the costs of this action.

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COMPLAINT

Index No:

Plaintiff(s)

- against -

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Plaintiff, by her attorney, GREGORY S. WATTS, complaining of the Defendants,
respectfully alleges, upon information and belief:

THE PARTIES AND FACTUAL ALLEGATIONS

1. Plaintiff, YANICK JEAN-BAPTISTE, was duly appointed the Administrator of the Estate of SERGE DUTHELY, deceased, and granted Letters of Administration in the Surrogate Court, County of Kings, City and State of New York on March 31, 2016.
2. That at the time of the commencement of this action, Yanick Jean-Baptiste resided in the County Kings, State of New York.
3. That the cause of action alleged herein arose in the County of Kings City and State of New York.
4. That this action falls with one or more of the exemptions set forth in CPLR§1602.
5. That at all times herein mentioned, defendant, CITY OF NEW YORK, was a municipal corporation licensed to do business in the State of New York.

6. That at all times herein mentioned, defendant, NEW YORK CITY POLICE DEPARTMENT, was a municipal corporation licensed to do business in the State of New York.
7. That at all times herein mentioned, defendant, POLICE OFFICER WHITE, was a resident in the State of New York.
8. That at all times herein mentioned, defendant, POLICE OFFICERS "JOHN DOE" 1 thru 5, first and last name unknown, were residents in the State of New York.
9. That prior hereto on or about March 18, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained together with plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller of the City of New York and that thereafter said comptroller refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
10. On July 26, 2016, a 50-H Hearing was held before the CITY OF NEW YORK.
11. That on January 31, 2016 and all times herein mentioned, Defendant CITY OF NEW YORK, owned the premises, 69TH Precinct, located at 9720 Foster Avenue, Brooklyn, New York 11236.
12. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were operated by Defendant CITY OF NEW YORK.
13. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were managed by Defendant CITY OF NEW YORK.
14. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were maintained by Defendant CITY OF NEW YORK.

15. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were controlled by Defendant CITY OF NEW YORK.
16. That on January 31, 2016, and at all times herein mentioned, Defendant NEW YORK CITY POLICE DEPARTMENT, owned the premises 69TH Precinct, located at 9720, Foster Avenue, Brooklyn, New York 11236.
17. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were operated by Defendant NEW YORK CITY POLICE DEPARTMENT.
18. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were managed by Defendant NEW YORK CITY POLICE DEPARTMENT.
19. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were maintained by Defendant NEW YORK CITY POLICE DEPARTMENT.
20. That on January 31, 2016, and at all times herein mentioned, the aforesaid premises were controlled by Defendant NEW YORK CITY POLICE DEPARTMENT.
21. That on January 31, 2016, and at all times herein mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed Police Officers JOHN DOE 1 THRU 5, whose names are yet known or identified as agents, servants, or employees.
22. That on January 31, 2016, and at all times herein mentioned and upon information and belief, POLICE OFFICERS JOHN DOE 1 thru 5, whose names are not yet known or identified were employed by the defendants, THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT.

23. That on January 31, 2016, and at all times herein mentioned, THE CITY OF NEW YORK AND THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER WHITE, as agent, servant, and/or employee.
24. That on January 31, 2016, and at all times herein mentioned, POLICE OFFICER WHITE, was employed by the defendants, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.
25. On January 31, 2016, at approximately 12 noon, the decedent, Serge Duthley was arrested by New York City police officer White, (hereinafter "NYPD"), and his partner New York City police officer, John Doe #1 as a result of a vehicle accident occurring at the intersection of Avenue J and East 91st Street, Brooklyn, New York.
26. Upon information and belief decedent was taken by police officer White and police officer John Doe #1, his partner, to the Intoxicated Driver Testing Unit, located at the 78th Precinct, located at 65 6th Avenue, Brooklyn, New York.
27. Upon information and belief the decedent upon arrival at the 78th Precinct he was logged at the front desk before the New York City Police Department Sergeant, John Doe #2.
28. Upon information and belief, police officer John Doe #3, the Intoxicated Unit officer administered a Breathalyzer and Coordination Test, both video taped, to the decedent.
29. Upon information and belief, the decedent was transported back to the 69th Precinct by police officer White and his partner, John Doe #1. He was first taken to the front desk of the precinct before police officer John Doe #4.
30. Upon information and belief decedent made a telephone call to family members advising them of his arrest.

31. Upon information and belief the holding cell has a clear plastic glass window approximately 5 x 5, which allows police personnel at the front desk to view/or look directly into the holding cell where the decedent was being held.
32. Upon information and belief the decedents presence in the cell was not monitored by police officer White or New York City Police Department personnel, as required or assigned to such a task.
33. Upon information and belief at approximately 5:30 p.m. decedent was found unresponsive in the holding cell. The New York City Police Department attribute his death to a suicide.

**AND AS FOR THE FIRST CAUSE OF ACTION ON
BEHALF OF YANICK JEAN-BAPTISTE AS ADMINISTRATOR
OF THE ESTATE OF SERGE DUTHELY FOR NEGLIGENCE **

34. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 33 inclusive with the same force and effect as if more fully set forth at length herein.
35. The above mentioned occurrence, and the results thereof, were caused by the negligence of the Defendant and or said defendants agents, servants, employees, and or licensees in the ownership, operation, management, maintenance and control of the aforesaid premises and the negligent supervision of the decedent.
36. That no negligence on the part of the deceased plaintiff contributed to the occurrence alleged herein in any manner whatsoever.
37. That because of the above stated negligence, deceased Plaintiff, Serge Duthely was caused to sustain serious injuries and to have suffered pain; that these injuries and their effects will be permanent: and as a result of said injuries deceased Plaintiff was rendered unable to perform plaintiff's normal activities and duties and has sustained a result and loss therefrom.

38. By reason of the foregoing, the plaintiff, Yanick Jean-Baptiste, as the Administrator of the Estate of Serge Duthely, demands judgment for negligence against CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, including but not limited to police officer White and police officers John Doe 1 thru 5, whose names are not yet known or identified, in the sum exceeding the jurisdictional limits of the lower court.

**AND AS FOR THE SECOND CAUSE OF ACTION ON
BEHALF OF YANICK JEAN-BAPTISTE FOR CONSCIOUS
PAIN AND SUFFERING OF SERGE DUTHELY, DECEASED**

39. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 38 inclusive with the same force and effect as if more fully set forth at length herein.
40. That as a result of the aforementioned accident Serge Duthely, before his death, suffered severe conscious pain, agony, and permanent multiple injuries which ultimately resulted in this death on January 31, 2016.
41. By reason of the foregoing, the plaintiff, Yanick Jean-Baptiste, as the Administrator of the Estate of Serge Duthely, demands judgment for conscious pain and suffering against CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, including but not limited to police officer White and police officers John Doe 1 thru 5, whose names are not yet known or identified, in the sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF YANICK JEAN-BAPTISTE**

42. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 41 inclusive with the same force and effect as if more fully set forth at length herein.

43. That at all times herein mentioned, plaintiff Yanick Jean-Baptiste, was the mother of the plaintiff, Serge Duthely.
44. That by reason of the foregoing, plaintiff, Yanick Jean-Baptiste was deprived of the society and services of decedent, Serge Duthely and shall forever be deprived of said society and services.
45. By reason of the foregoing, the plaintiff, Yanick Jean-Baptiste, as the Administrator of the Estate of Serge Duthely, demands judgment against CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, including but not limited to police officer White and police officers John Doe 1 thru 5, whose names are not yet known or identified, in the sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF YANICK JEAN-BAPTISE**

46. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 45 inclusive with the same force and effect as if more fully set forth at length herein.
47. That at all times herein mentioned, plaintiff Yanick Jean-Baptiste was the mother of the plaintiff Serge Duthely.
48. That by reason of the foregoing plaintiff Yanick Jean-Baptiste has suffered a pecuniary loss of the plaintiff, Serge Duthely and shall forever be deprived of same.
49. By reason of the foregoing, the plaintiff, Yanick Jean-Baptiste, as the Administrator of the Estate of Serge Duthely, demands judgment against CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, including but not limited to police officer White and police officers John Doe 1 thru 5, whose names are not yet known or identified, in the sum exceeding the

jurisdictional limits of the lower court.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
SYMPHONY LEE DUTHELY AND KLHOE LEON DUTHELY**

50. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 49 inclusive with the same force and effect as if more fully set forth at length herein.
51. That at all time mentioned plaintiff infants Symphony Lee Duthely and Klhoe Leon Duthely are the children of the plaintiff Serge Duthely.
52. That by reason of the foregoing the infants will be deprived of the society and services of the plaintiff, Serge Duthely, and shall forever be deprived of said society and services
53. By reason of the foregoing, the plaintiff, Yanick Jean-Baptiste, as the Administrator of the Estate of Serge Duthely, demands judgment against CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, including but not limited to police officer White and police officers John Doe 1 thru 5, whose names are not yet known or identified, in the sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
THE INFANTS SYMPHONY LEE DUTHELY AND KLHOE LEON DUTHELY**

54. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 53 inclusive with the same force and effect as if more fully set forth at length herein.
55. That at all times herein mentioned plaintiff infants Symphony Lee Duthely and Klhoe Leon Duthely was the children of plaintiff Serge Duthely.
56. That by reason of the foregoing, plaintiff has exercised a pecuniary loss of the plaintiff Serge Duthely and shall be forever deprive of the same.

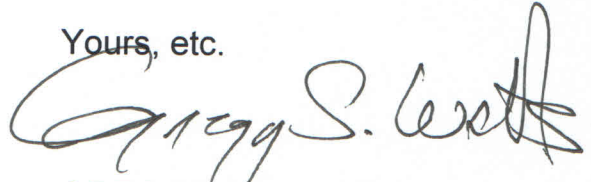
57. By reason of the foregoing, the plaintiff, Yanick Jean-Baptiste, as the Administrator of the Estate of Serge Duthely, demands judgment for negligence against CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, including but not limited to police officer White and police officers John Doe 1 thru 5, whose names are not yet known or identified, in the sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
YANICK JEAN-BAPTISTE, AS ADMINISTRATOR OF THE ESTATE OF
SERGE DUTHELY FOR NEGLIGENT HIRING AND RETENTION**

58. The plaintiffs repeats and reallege each and every allegation set forth above numbered 1 thru 57 inclusive with the same force and effect as if more fully set forth at length herein.
59. Defendants did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees and were negligent in the hiring training and retention of police officer White, police officers John Doe 1 thru 5, whose names are not yet known or identified, who failed to exercise reasonable care in monitoring the decedents whereabouts, behavior, while in their custody.
60. Upon information and belief, that the Defendants, CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of defendants, police officer White, and police officers John Doe 1 thru 5, whose names are not yet known or identified, and continue to employ them and allow them to be in contact with the public at large.

Dated: August 30, 2016
Kings County

Yours, etc.

A handwritten signature in black ink, appearing to read "Gregory S. Watts". The signature is fluid and cursive, with the first name "Gregory" written in a larger, more prominent script than the last name "Watts".

GREGORY S. WATTS
Attorney for Plaintiff,
26 Court Street, Suite 910
Brooklyn, New York 11242
(718) 875-5020

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF KINGS)

YANICK JEAN-BAPTISTE, being duly sworn, deposes and says:

I am the plaintiff in the within action and I have read the foregoing Summons and Verified Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge is based upon conversations with my attorney and other pertinent information contained in his file.

Yanick Jean Baptiste
 YANICK JEAN-BAPTISTE, as
 Administrator for the Estate of
 SERGE DUTHELY

Sworn to before me this 9th
day of September 2016



Notary Public
GREGORY S. WATTS
Notary Public, State of New York
No. 02WA4669819
Qualified in Kings County
Commission Expires 8/11/2016

Index No.

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unknown

Defendant(s)

SUMMONS AND COMPLAINT

GREGORY S. WATTS
26 Court Street, Suite 910
Brooklyn, New York 11242
Telephone: 718-875-5020

Attorney for : Plaintiff(s)

To:
Attorney(s) for:

Service of a copy of the within

PLEASE TAKE NOTICE

Notice of Entry: that the within is a certified copy of a
entered in the office of the clerk of the within named Court on , 2016

Notice of Settlement: that an Order of which the within is a true copy will be presented for settlement to
the Hon.

Dated : August 30, 2016
Kings County